

23SMCV03341 23SMCV03341

County: los-angeles

Division: Civil Law and Motion

Department: 207

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Case Number: 23SMCV03341 Hearing Date: September 10, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

10, 2026

CASE NUMBER

23SMCV03341

MOTION

Motion

for Summary Judgment/Summary Adjudication

MOVING PARTY

Defendant Sara D. Tarvaran

OPPOSING PARTY

Plaintiff

Mary Agnes Klock

MOVING PAPERS:

Notice

of Motion and Motion for Summary Judgment/Summary Adjudication; Memorandum
of Points and Authorities

Declaration

of Myrna Van, Esq.

Separate

Statement of Undisputed Material Facts

OPPOSITION PAPERS:

Opposition to Motion for Summary

Judgment/Summary Adjudication; Memorandum of Points and Authorities;

Declaration of Plaintiff Mary Agnes Klock

Response to Separate Statement of

Undisputed Material Facts

REPLY PAPERS:

Reply

in Support of Motion for Summary Judgment/Summary Adjudication

BACKGROUND

This case arises from an alleged collision between an automobile and a
pedestrian in a McDonald's parking lot.

On July 20, 2023, Plaintiff Mary Agnes Klock ("Plaintiff") filed suit
against Defendant Sara D. Tarvaran ("Defendant") alleging a single cause of
action for general negligence.

Defendant now moves for summary judgment, or
in the alternative summary adjudication of the following issues:

Issue No.

1: Plaintiff's First Cause of Action for General Negligence has no merit because Plaintiff cannot establish causation or damages.

Issue No.

2: Plaintiff's claim for physical injury damages has no merit because Plaintiff is deemed to have admitted she suffered no physical injury as a result of the subject incident.

Issue No.

3: Plaintiff's claim for emotional distress damages has no merit because Plaintiff is deemed to have admitted she suffered no emotional distress as a result of the subject incident.

Issue No.

4: Plaintiff's claim for wage loss has no merit because Plaintiff is deemed to have admitted she suffered no wage loss as a result of the subject incident.

Issue No.

5: Plaintiff's claim for loss of earning capacity has no merit because Plaintiff is deemed to have admitted she suffered no loss of earning capacity as a result of the subject incident.

Issue No.

6: Plaintiff's claim for back injury and future treatment damages has no merit because Plaintiff is deemed to have admitted she suffered no physical injury, had no back pain following the subject incident, and was not advised to seek future treatment for alleged back injuries attributed to the subject incident.

Issue No.

7: Plaintiff's claim for hip injury damages has no merit because Plaintiff is deemed to have admitted she suffered no physical injury and had no hip pain following the subject incident.

Issue No.

8: Plaintiff's claim for psychological injury damages has no merit because Plaintiff is deemed to have admitted she is not claiming any psychological impact from the subject incident and has not been diagnosed with any psychological condition as a result of the subject incident.

Issue No.

9: Plaintiff's claim for neurological injury damages has no merit because Plaintiff is deemed to have admitted she is not claiming that the subject incident caused any neurological defects.

Plaintiff

opposes the motion and Defendant replies.

LEGAL STANDARDS – MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (hereafter Aguilar).) “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].)

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Aguilar, supra, 25 Cal.4th. at p. 840 [cleaned up]; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

A party may move for summary adjudication as to one or more causes of action, affirmative defenses,

claims for damages, or issues of duty if that party contends that there is no merit to the cause of action, defense, or claim for damages, or if the party contends that there is no duty owed. (See Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Ibid.) A cause of action has no merit if: (1) one or more elements of the cause of action cannot be separately established, even if that element is separately pleaded, or (2) a defendant establishes an affirmative defense to that cause of action.

(See Code Civ. Proc., §

437c, subd. (n); *Union Bank v. Superior*

Court (1995) 31 Cal.App.4th 573, 583.) Once the defendant has shown that a cause of action has no merit, the burden shifts to the plaintiff to show that a triable

issue of material fact exists as to that cause of action. (See Code Civ. Proc., § 437c, subd. (o)(2); *Union Bank v. Superior Court*, *supra*, 31

Cal.App.4th at p. 583.)

Additionally, in line with *Aguilar*, “[o]n a motion for summary

adjudication, the trial court has no discretion to exercise. If a triable

issue of material fact exists as to the challenged causes of action, the motion

must be denied. If there is no triable issue of fact, the motion must be

granted.” (*Fisherman’s Wharf Bay Cruise Corp. v. Superior Court*

(2003) 114 Cal.App.4th 309, 320.)

DISCUSSION

1. Negligence Cause of action - Causation and

Damages

The elements for a negligence

cause of action are duty, breach, causation, and damages. (*Castellon v. U.S. Bancorp* (2013) 220

Cal.App.4th 994, 998.)

a. Defendant’s Evidence

Defendant argues Plaintiff

cannot establish causation or damages. In support, Defendant advances the following evidence:

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Defendant

electronically served Requests for Admission Set One (“RFA”) on Plaintiff on

November 6, 2024. (UMF No. 4.)

.

Plaintiff

failed to timely respond to the RFA.

(UMF No. 5.)

.

On

September 24, 2025, the Court entered an order deeming the RFA admitted. (UMF No. 6.)

.

Plaintiff

has not sought or obtained relief from the order deeming the RFA admitted. (UMF No. 7.)

.

Plaintiff

is deemed to have admitted the following:

o

Defendant's

car did not make contact with Plaintiff or Plaintiff's body.

o

Plaintiff

did not suffer any physical injuries as a result of the subject incident.

o

The LAPD

videos produced in this action do not depict any contact between Plaintiff and Defendant's vehicle.

o

Plaintiff

did not call an ambulance at the scene of the subject incident.

o

Following

the alleged impact, Plaintiff walked from the scene to the subject property (the McDonald's restaurant) with ease and without any difficulty.

0

Plaintiff

did not have back pain following the subject incident.

0

Plaintiff

did not have hip pain following the subject incident.

0

Plaintiff

was not advised by any health care provider to seek future treatment for alleged back injuries attributed to the subject incident.

0

Plaintiff

did not suffer wage loss as a result of the subject incident.

0

Plaintiff

did not suffer a loss of earning capacity as a result of the subject incident.

0

Plaintiff

is not claiming any psychological impact from the subject incident.

0

Plaintiff

is not claiming that the subject incident caused her any neurological defects.

0

Plaintiff

has not been diagnosed with any psychological condition as a result of the subject incident.

0

Plaintiff

did not suffer any physical injuries as a result of the subject incident.

0

Plaintiff

did not have back pain following the subject incident.

o

Plaintiff

did not have hip pain following the subject incident.

Thus, Defendant has met her initial burdens of production and persuasion to demonstrate that Plaintiff will be unable to prove causation or damages.

b. Plaintiff's Evidence

In opposition, Plaintiff advances her own declaration, which provides:

.
"Defendant's car contacted Plaintiff." (Klock Decl. ¶ 2.)

.
"Once home, she and her husband went to Ronald Reagan UCLA Medical Center for treatment." (Klock Decl. ¶ 3.)

.
"Plaintiff suffered injuries as set forth in Response to Form Interrogatories and she continues to treat with doctors for her ongoing pain/discomfort. The Response to Form Interrogatories and the medical records provided to Defendant in response to Discovery." (Klock Decl. ¶ 4.)

.
"Plaintiff continues to follow the recommendation of her medical providers and continues to treat as needed." (Klock Decl. ¶ 5.)

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“To this

day, I continue to experience injuries to my body which include: both knees, that create constant pain and diminished mobility; pain in her head, neck and back; ongoing chronic migraines that started after the accident and continue with ongoing migraines. Since the incident, I have pain in my knees virtually every day causing me to limp badly. The pain has minimized my ability to walk and exercise. I have had physical therapy, which has helped, but it has not resolved my pain or mobility issues.”

(Klock Decl. ¶ 6.)

“[W]hen discovery has produced

an admission or concession on the part of the party opposing summary judgment which demonstrates that there is no factual issue to be tried,” a party's declaration to the contrary is insufficient to create a triable issue of material fact. (*D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 21; see generally *Prilliman v. United Air Lines, Inc.* (1997) 53 Cal.App.4th 935, 961 [“a line of cases has developed the rule that where a party in discovery has made an admission which justifies summary judgment in favor of his opponent, he cannot attempt to defeat the summary judgment motion by submitting a declaration contradicting the admission”].)

Further, “[a] deemed admitted

order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein.” (*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 776.) “Matters that are admitted or deemed admitted through RFA discovery devices are conclusively established in the litigation and are not subject to being contested through contradictory evidence.” (*Id.* at p. 775.)

In short, Plaintiff may not rely

on her own declaration to establish triable issues of material fact when such material facts have been established based upon matters deemed admitted, and in turn, Plaintiff has not met her burden of production.

In the alternative, Plaintiff

requests that the Court continue the motion, pending Plaintiff's request for relief from the deemed admissions. But no such motion challenging the order deeming admitted the matters in the RFA is

currently pending. Thus, Plaintiff has demonstrated no good cause for a continuance.

CONCLUSION AND ORDER

For the foregoing reasons, finding no triable issues of material fact regarding the causation and damages elements of Plaintiff's claim for negligence, the Court grants Defendant's motion for summary judgment.

Further, the Court will enter the proposed Order lodged on June 16, 2026 in conformance with the ruling, and the Court orders Defendant to lodge and serve a proposed Judgment in conformance with the ruling on or before September 24, 2026.

Further, based upon the Court's ruling, the Court vacates as moot the following proceedings:

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Status Conference re Discovery, ADR and Motion Practice

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Order to Show Cause re Monetary Sanctions
against Plaintiff and Defense Counsel for Failure to File a Joint Report

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Final Status Conference

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Trial

Defendant shall provide notice of the Court's ruling/Order, and file the notice with a proof of service forthwith.

DATED: September 10, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court